

25LBCV00755 25LBCV00755

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C07%2F09%2F2026

Source SHA-256: 0fcc76793f64622ee633d1e096649da051a98116ccd0be4a3e56a7774cc221a2

Case Number: 25LBCV00755 Hearing Date: July 9, 2026 Dept: S27

On 4/17/26, the Court heard

Defendant's ex parte application for an order compelling Plaintiff's deposition

or shortening time to hear Defendant's motion to compel Plaintiff's deposition. The Court ordered Plaintiff to appear for deposition by 5/01/26. The Court noted,

"The Court will consider sanctions if deposition is not held."

On 5/12/26, Defendant filed this

motion for terminating sanctions based on Plaintiff's failure to comply with

the 4/17/26 order, setting the motion for hearing on 12/17/26. Because 12/17/26 is after the scheduled trial date, Defendant made an ex parte application to advance the hearing on the

motion. The Court granted the

application on 5/13/26, setting the motion for hearing on 7/09/26. Both parties appeared at the hearing, and notice was waived.

Defendant moves for terminating

sanctions, contending Plaintiff failed to comply with the order re:

deposition. Plaintiff filed timely

opposition to the motion, declaring the deposition went forward on 6/02/26 and

the motion is moot. Defendant did not

file reply papers and appears to concede the motion is moot. The Court has repeatedly requested Defense Counsel take matters off calendar once they become moot; the Court again so requests.

Defendant is ordered to give notice.